

26STCV07943 26STCV07943

County: los-angeles

Division: Civil Law and Motion

Department: 310

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Case Number: 26STCV07943 Hearing Date: August 7, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: August 7, 2026

Case Name: Johnson v. Montravena, et al.

Case No.: 26STCV07943

Matter: Motion to Quash Service of Summons

Moving Party: Defendant James Blucker

Responding Party: Plaintiff Patrick Johnson

Notice: OK

Ruling: The Motion to Quash is granted.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

Defendant James Blucker now seeks to quash service of summons because "the clerk-issued summons identifies only 'David Gadish, individually and as agent of Geffen Real Estate and DOES 1–20, inclusive' as defendants. The summons

does not state on its face that an Additional Parties Attachment is attached. Defendant Blucker is listed only on a separate SUM-200(A) Additional Parties Attachment. That defect is jurisdictional. A summons must be directed to the defendant over whom jurisdiction is sought. The summons here was not directed to Defendant Blucker.”

A defendant may move to quash service of summons on the ground the Court lacks personal jurisdiction. (Code Civ. Proc. § 418.10(a)(1).) “Although the defendant is the moving party, the plaintiff must carry the initial burden of demonstrating facts by a preponderance of evidence justifying the exercise of jurisdiction in California.” (In re Automobile Antitrust Cases I and II (2005) 135 Cal.App.4th 100, 110.)

Defendant’s argument is well-taken. The initial summons is quashed with respect to Defendant Blucker.

Plaintiff has now filed an amended summons naming Blucker. The proof of service was “by mail and acknowledgment of receipt of service.” No such acknowledgement, however, has apparently been provided such that service is not complete. Plaintiff should now complete service of the amended summons.

The Motion to Quash is granted.

Moving party to give notice.